

The Legitimate Role of Labor Unions in Combatting Democratic Backsliding

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THESIS: Labor unions may legitimately take actions to prevent or reverse democratic backsliding, even if such actions impose significant economic and social costs on the society in which said actions take place.

I. Assumptions and Definitions

A. Definitions

Democracy: form of government that satisfies all the following criteria:

1. *Equality*: there is equality of decision-making power during the process which determines the rules by which said government is governed.
2. *Provisionality*: there are mechanisms by which at least some of the laws and representatives of the government may legally be changed, and thus said set of laws and representatives have only provisional authority
3. *Competition*: all would-be political representatives must compete via elections to determine who is to govern
4. *Checks*: there are checks and balances in place to prevent representatives or governmental functionaries from undermining any aforementioned criteria

Democratic Backsliding: "the state-led debilitation or elimination of any of the political institutions that sustain an existing democracy"

B. Assumptions

Unjust: Democratic backsliding is unjust because:

1. *Public Equality*: Democracy publicly realizes equality, which is itself valuable
2. *Rights*: Democracies better protect rights than other forms of government, and backsliding undermines basic liberties

This talk also serves as an official coming out. However, I'd rather not focus on this point during our hour together. If you have any questions about what this means, please email me or talk to me at some other time. Also, I chose the name "Helen" before I found out about the famous journalist of the same name, to whom I bear no relation. Consequently, I put my new chosen middle name in here - sort of as an homage to the inimitable Mark E. Smith of The Fall.

Christiano and Bajaj 2018

Anderson 2006, Dahl 2006

Schumpeter 2013 [1942]

Bermeo 2016

Christiano 2008

Christiano 2011, Jee et al 2022

3. *Global Justice*: Backsliding negatively correlates with the fulfillment of international obligations (esp. climate-related obligations)

Pattison 2025

4. *Historical Injustice*: Backsliding correlates with the perpetuation of historical injustices against minority groups - an injustice that is worth highlighting as a desideratum of representative democracy is to allow said groups to elect representatives which will pursue their aims and raise previously underappreciated concerns

Grumbach 2023, Dovi 2002

Popular Resistance: The threat of coordinated popular resistance incentivizes representatives and elites to follow electoral norms

Machiavelli 2018 [1531], Fearon 2011

Joint-ownership: Other actors besides labor unions may legitimately take actions to prevent or reverse backsliding:

1. *Militant Democracy*: states may take make "limited interventions" to prevent undemocratic parties from gaining power
2. *Cordon Sanitaire*: political parties should refuse to work with unreasonable extremist parties so as to isolate them

Kirshner 2014. This is a hotly debated claim. My aim here is not to justify it, but merely record it as one popular claim in democratic theory at the moment.
Levitsky and Ziblatt 2018

II. The Procedural Legitimacy of Labor Unions

1. Labor unions have internal democratic and egalitarian decision-making features.
2. Labor unions require collective deliberation to reach decisions.
3. Labor unions have internal democratic and egalitarian decision-making features, and require collective deliberation to reach decisions. (1, 2, conjunction introduction)
4. If labor unions have internal democratic and egalitarian decision-making features, and require collective deliberation to reach decisions, then their decisions are procedurally just.
5. The decisions of labor unions are procedurally just. (3, 4, modus ponens)
6. If a decision is procedurally just, then one has a pro tanto reason to follow the decision.
7. One has a pro tanto reason to follow the decisions of labor unions. (5, 6, modus ponens)

Young 2000, Christiano 2004

III. Labor Unions and Substantive Justice

1. Labor unions coordinate collective action and defend the interests of the worst off. Stehr 2025
2. If labor unions coordinate collective action and defend the interests of the worst off, then they publicly realize justice. Christiano 2008, Rawls 1971
3. Labor unions publicly realize justice. (1, 2, modus ponens)

IV. Labor Unions and Democratic Backsliding

A. The Pedagogical Role of Labor Unions

1. Democratic backsliding positively correlates with voter ignorance. Pevnick 2024, Chiopris et al 2025, Braley et al 2023
2. Labor unions have internal democratic and egalitarian decision-making features and require collective deliberation to reach decisions.
3. If labor unions have internal democratic and egalitarian decision-making features and require collective deliberation to reach decisions, then they effectively aggregate information and educate their members. Hong and Page 2004, Brennan and Landemore 2021, Anderson 2006
4. Labor unions effectively aggregate information and educate their members. (2, 3, modus ponens)
5. If labor unions effectively aggregate information and educate their members, then members will become less ignorant.
6. Labor unions can mitigate the effects of voter ignorance on democratic backsliding. (1, 5)

B. Collective Action and Democratic Backsliding

1. Iff there is a plausible threat of collective action enforcing democracy, then leaders are disincentivized from backsliding. Fearon 2011
2. If labor unions coordinate collective action, then they can be a plausible threat of democratic enforcement.
3. If labor unions coordinate collective action, then they can disincentivize leaders from backsliding. (1, 2, modus ponens)

C. Democratic Backsliding and Public Services

1. Democratic backsliding correlates with declines in public services. Cremaschi et al 2024
2. Labor unions preserve public services.
3. Labor unions mitigate backsliding due to declines in public services. (1, 2)

V. Historical Case Studies

Prevent: Mass union action coordinated resistance to the Kapp-Lüttwitz Putsch

Reverse: FIAT strikes in 1943 aided in the reversal of fascism in Italy

Feldman 1971, Smaldone 2008, Feuchtwanger 1993, Broué 2006
Cecchini 2020

VI. The Samuel Gompers Objection

A. The Objection Itself

1. Labor unions have historically acted in chauvinistic ways.
2. If labor unions have historically acted in chauvinistic ways, then they can undermine public equality.
3. Labor unions can undermine public equality. (1, 2, modus ponens)
4. If labor unions can undermine public equality, then they cannot have legitimate authority.
5. Labor unions cannot have legitimate authority. (3, 4, modus ponens)

B. Unions and Rackets

Racket: an institution which ossifies existing class relations through coercion rather than undermine them

Horkheimer 2025 [1943]

1. If a union acts in chauvinistic ways, then it becomes a racket.
2. If a union becomes a racket, it undermines equality.
3. If a racket undermines public equality, then it loses legitimacy.
4. If a union acts in chauvinistic ways, then it undermines equality. (1, 2, hypothetical connective)
5. If a union acts in chauvinistic ways, then it loses legitimacy (3, 4, hypothetical connective)

VII. *The Autonomy Objection*

A. *The Objection as Such*

1. If unions were permitted to take action to combat backsliding, then they would require closed shops.
2. If a union is closed shop, then it unjustly infringes on the autonomy of both employers and employees.
3. If unions were permitted to take action to combat backsliding, then they would unjustly infringe on the autonomy of both employers and employees. (1, 2, hypothetical connective)
4. If a course of action unjustly infringes on one's autonomy, then it is *pro tanto* illegitimate.
5. Thus, if unions were permitted to take action to combat backsliding, they would be *pro tanto* illegitimate.

B. *Assessing the Objection*

1. *A Higher Autonomy - Contra 2*: Closed shops *enable* a separate type of autonomy (e.g., republican freedom) in the workplace
2. *Weighing Autonomy - Contra 2*: Losses in negative freedom which closed shops may incur are outweighed by gains in autonomy in positive and republican domains
3. *Weighing Autonomy in Different Spheres - Contra 5*: The loss of autonomy owing to backsliding outweighs any potential loss of autonomy owing to closed shop workplaces.
4. Thus, per *Different Spheres*, permitting unions to combat backsliding is *more* legitimate than barring them from doing so.

Anderson 2017

Cohen 2011

VII. *The Transhistoricization Objection*

A. *The Objection Itself*

1. My argument presumes that unions are presently capable of enforcing democratic norms.
2. But this presumes that the set of social relations today is identical to the set of social relations.
3. There are important differences in the set of social relations that suggest that unions are now incapable of enforcing democratic norms.

This is inspired by Marx's critique in the *Grundrisse* re: the invalidity of the transhistoricization that political economy engaged in

4. Thus, my argument transhistoricizes the capacity of civil society to enforce democratic norms in a problematic way.

B. Response

Jetztzeit: “now time” – that is, the claim that vast changes in political possibilities can change during moments of crisis

Benjamin 1940

"There are weeks where decades happen." - V. I. Lenin

Thus, present facts about what is true now matter, but are not the sole deciding factor in the terrain of possibility,

VIII. The Hobbes-Weber Objection

A. The Objection as Such

1. The state is "the form of human community that (successfully) lays claim to the monopoly of legitimate physical violence within a particular territory."
2. Granting unions legitimacy to act undermines the undivided sovereignty of the state.
3. Undermining the undivided sovereignty of state leads to a war of all against all.
4. Granting unions legitimacy to act leads to a war of all against all. (2, 3, hypothetical connective)
5. The negative consequences of a war of all against all outweigh the negative consequences of democratic backsliding.
6. The negative consequences of granting unions legitimacy outweigh the negative consequences of democratic backsliding. (4, 5, hypothetical connective)

Weber 2004 [1921]

Hobbes 1951 [1651]

B. Response to the Hobbes-Weber Objection

1. Premise 1 is imprecise as it misses the element of class domination.
2. Premise 2 is not necessarily true, as we are often subject to multiple authorities simultaneously.
3. Premise 3 is false, and consequently the argument is unsound.
4. Premise 5 is false, as the negative consequences of undivided sovereignty are worse than the negative consequences of a state of nature.

Raz 2005

Locke 1689